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62.	National Funding, Inc. v. Great Caterers LLC 2025-01527909	Plaintiff National Funding, Inc.'s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment. Plaintiff's Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25. Defendants' evidentiary objection No. 12 is OVERRULED based on this ruling. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objection Nos 2-5, 7-10, and 13 are SUSTAINED. Defendants' other evidentiary objections are OVERRULED. Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff's burden when moving for summary judgment. It provides: "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto." "[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts

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		exist.” (<i>Campbell v. FPI Management, Inc.</i> (2024) 98 Cal.App.5th 1151, 1162.) Plaintiff moves for summary judgment of its four causes of action for breach of contract. The elements for a cause of action for breach of contract are: “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff fails to meet its initial burden to establish a breach of FRPSA Agreements Nos. 1 and 2. Since the initial burden for the element of breach of the FRSPA Agreements has not been met, Plaintiff cannot meet its initial burden to establish a breach of the guaranty agreements. With respect to the breach of FRSPA No. 1, Plaintiff asserts: “On or about August 18, 2023, Seller defaulted on FRSPA No. 1 by instructing its bank or other depository financial institution to stop payment on the authorized ACH withdrawal initiated by National Funding and has continuously remained in default.” (SSUMF No. 5.) Plaintiff cites to the Otero Declaration, ¶¶6-9 and the “Payment History” attached as an exhibit to Otero’s declaration. With respect to the breach of FRSPA No. 2, Plaintiff asserts “On or about August 17, 2023, Seller defaulted on FRPSA No. 2 by instructing its bank or other depository financial institution to stop payment on the authorized ACH withdrawal initiated by National Funding and has continuously remained in default.” (SSUMF No. 16.) Plaintiff cites to the Otero Declaration, ¶¶13-16 and the “Payment History” attached as an exhibit to Otero’s declaration. Paragraph 4.1 of both FRSPA 1 and 2 provide the same list of 21 “events of default.” Plaintiff’s Motion only invokes Paragraph 4.1, subd. (ii), which provides that the following would constitute a default on the Agreements: “Seller [Defendant] instructs its bank or other depository financial institution to stop payment on any authorized ACH withdrawal initiated by Purchaser.” Plaintiff fails to provide competent evidence in support of its motion to meet its initial burden that Defendants instructed their bank to stop payments to Plaintiff. The evidence shows that Plaintiff attempted to withdraw its payments under FRSPA No. 1 on 8/18/23 and FRSPA No. 2 on 8/17/23, but the payment history exhibits and Otero’s declaration provides no evidence that the payments failed due to Defendants

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		instructing "its bank or other depository financial institution to stop payment on any authorized ACH withdrawal initiated by" Plaintiff. The Court will not draw the inference that the failure of the withdrawal was the result of Defendants' instructions to the bank. The showing in support of the breach of guaranty causes of action is equally unavailing. Plaintiff asserts that: - "On or about September 1, 2022, Guarantor executed and delivered to National Funding a written personal guaranty, under which he guaranteed the indebtedness of the Seller due to National Funding under FRPSA No. 1." (SSUMF No. 4.) - "Guaranty No. 1 states in relevant part: 1.1 Scope: Guarantor hereby absolutely, irrevocably and unconditionally guarantees to the Purchaser the following ... (vi) Seller will not block Purchaser from, and will provide Purchaser with full access to, the Designated Account" (SSUMF No. 9.) - "On or about March 15, 2023, Guarantor executed and delivered to National Funding a written personal guaranty, under which he guaranteed the indebtedness of the Seller due to National Funding under FRPSA No. 2" (SSUMF No. 15.) - "Guaranty No. 2 states in relevant part: 1.1 Scope: Guarantor hereby absolutely, irrevocably and unconditionally guarantees to the Purchaser the following ... (vi) Seller will not block Purchaser from, and will provide Purchaser with full access to, the Designated Account" (SSUMF No. 20.) This showing is deficient. There is no evidence that Defendants blocked Plaintiff from accessing the account. There is no evidence that Defendants instructed the bank to stop payment. Thus, there is no basis for the acceleration of the indebtedness, leaving no basis for a claimed breach of guaranty. The motion fails on the initial burden as to all four causes of action. Accordingly, the motion is DENIED. Defendant shall provide notice of this ruling.
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